

26STLC01724 26STLC01724

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-27

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Case Number: 26STLC01724 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE

RULING:

Defendants Maria

Quiroz Merlos, Emma Solache and Lilia Sanche's Demurrer to the Complaint is placed off calendar.

Order

to Show Cause Re: Why This Action Should Not Be Reclassified as an Unlimited Civil Action and Transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment to an Unlimited Civil Court is scheduled for 09/24/2026, at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiffs Araceli Vera, Humberto Solache, Leticia Padilla

("Plaintiff") filed the instant action against Defendants Maria Quiroz Merlos,

Emma Solache and Lilia Sanche ("Defendants") on March 13, 2026. Defendants filed the instant Demurrer to the Complaint on June 23, 2026. No opposition to the Demurrer has been filed to date.

Discussion

A few issues prevent the Court from addressing the Demurrer.

First, the Demurrer is not

accompanied by a proof of service demonstrating service of the moving papers or notice of the hearing date upon Plaintiffs. Failure to give notice of the papers and hearing date is a violation of due process and of the statutory

notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

Additionally, the Demurrer is not accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. Although failing to comply with the meet and confer requirement is not grounds to overrule the Demurrer, the Court retains the discretion to place the hearing off calendar or continue the matter to ensure compliance.

Finally, to the extent that the Complaint for breach of contract seeks specific performance as a remedy, this action is not properly before the Limited Civil Court. (Compl., ¶¶10d, BC-6, p. 3:12-4:14.) Specific performance is an equitable remedy that is not permitted in the Limited Civil Court. (See Code Civ. Proc., §§ 85, 86, subd. (b).) The Court will set an Order to Show Cause regarding transfer of this action to the correct department.

Conclusion

Defendants Maria

Quiroz Merlos, Emma Solache and Lilia Sanche's Demurrer to the Complaint is placed off calendar.

Order

to Show Cause Re: Why This Action Should Not Be Reclassified as an Unlimited Civil Action and Transferred to the Reclassification/Transfer Desk for Collection of Fees and Reassignment to an Unlimited Civil Court is scheduled for 09/24/2026, at 9:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.